

The Board of Education of the Brecksville-Broadview Heights City School District met in regular session on October 28, 2020 with the following members present: Kathleen Mack, Mark Dosen, Ellen Kramer, Fred Pedersen, Brittany Wigman.

The Treasurer, as the case may be, advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following Resolution:

RESOLUTION NO. _____

A RESOLUTION TO SUPPORT SENATE BILL (SB) 358, WITH THE ADDITIONAL EDUCATION ITEMS INCLUDED, AND TO ENCOURAGE THE 133RD GENERAL ASSEMBLY TO EXPEDITE THE PASSAGE OF THE BILL WITH THOSE CHANGES.

WHEREAS, the Senate Bill (SB) 358 was introduced in August to extend many important provisions of House Bill (HB) 197 and HB 164 through the 2020-21 school year, and in certain cases, beyond, to provide the flexibility districts need to address the unique circumstances of their communities, their school districts, and their students related to the coronavirus pandemic;

WHEREAS, the provisions in SB 358 will support our state's educators as they meet the diverse needs of students during the most challenging time we have ever experienced in education;

WHEREAS, with some exceptions, SB 358 prohibits the Ohio Department of Education (ODE) from awarding first-time building performance-based EdChoice vouchers for the 2021-22 school year, which prohibition is an extension of the same provision provided for the 2020-21 school year in HB 197;

WHEREAS, additional provisions must be added to SB 358 to provide relief to the 517 buildings that are losing a substantial amount of revenue to private schools due to EdChoice performance-based vouchers, including the following: (i) Freeze school districts' voucher deductions at FY 2019 levels since the foundation formula is frozen and foundation aid payments are at reduced FY 2019 levels; (ii) Clarify that only one 60-day window for EdChoice applications will be available to voucher students by removing the rolling application window; (iii) Allow buildings to exit the eligibility list during the safe harbor period if they meet state improvement criteria; (iv) Clarify that a voucher student moving to a new district and building that has not yet been subject to voucher deductions cannot continue to be eligible; (v) Provide additional funding to districts for the offset of losses from vouchers; and (vi) Phase out the building performance-based voucher program, replacing it with an income-based program (as outlined in the current version of SB 89) (the "EdChoice Provisions"); and

WHEREAS, in addition to the EdChoice Provisions, the following essential changes should be added to SB 358: (i) Extension and broadening of waiver authority for ODE; (ii) Extension of the flexibility to hold virtual board meetings under the Ohio Open Meetings Act; (iii) Elimination of the new territory transfer law; and (iv) Elimination of the academic distress commissions (the "Additional Provisions," and together with the EdChoice Provisions, the "Additional Education Items").

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of the Brecksville-Broadview Heights City Schools School District, that:

Section 1. It is necessary to formally endorse Senate Bill 358 of the 133rd General Assembly, with the Additional Education Items added, to ensure the continued operations and financial stability of Ohio public school districts in order to meet the needs of all students.

Section 2. The Treasurer is authorized to deliver or cause to be delivered a certified copy of this Resolution to community leaders and to members of the Ohio House of Representatives and the Ohio Senate, including Representative Phil Robinson and Senator Matt Dolan.

Section 3. This Resolution shall be in full force and effect immediately upon its adoption.

_____ seconded the motion.

Upon roll call on the adoption of the foregoing Resolution, the vote was as follows:

Kathleen Mack -
Mark Dosen -
Ellen Kramer -
Fred Pedersen -
Brittany Wigman -